

(4) No proceedings for an offence under this section shall be brought in England or Wales except by or with the consent of the Director of Public Prosecutions.

(5) Nothing in subsection (1) of this section shall apply to anything done solely for the purpose of entertainment.

2. The following enactments are hereby repealed, that is to say—

(a) the Witchcraft Act, 1735, so far as still in force, and 9 Geo. 2. c. 5.

(b) section four of the Vagrancy Act, 1824, so far as it extends to persons purporting to act as spiritualistic mediums or to exercise any powers of telepathy, clairvoyance or other similar powers, or to persons who, in purporting so to act or to exercise such powers, use fraudulent devices. 5 Geo. 4. c. 83.

3.—(1) This Act may be cited as the Fraudulent Mediums Act, 1951. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 34

National Insurance Act, 1951

ARRANGEMENT OF SECTIONS

Section

1. Alteration of Exchequer contributions to National Insurance Fund.
2. Widows' benefit.
3. Increase of benefit for children.
4. Retirement pensions.
5. Increased guardian's allowance.
6. Relaxation of conditions for increase of benefit in respect of wife engaged in gainful occupation.
7. Re-entry into regular employment after retirement.
8. Appointed day, and supplementary provisions.
9. Regulations and orders.
10. Short title, citation and construction.

SCHEDULE.—Amendments consequential on the payment of benefit in respect of children other than the elder or eldest.

An Act to provide for reducing the payments out of moneys provided by Parliament into the National Insurance Fund; for increasing the rate of widowed mothers' allowances under the National Insurance Act, 1946, and of retirement pensions under the said Act; for increasing benefits under the National Insurance Acts, 1946 to 1949, in respect of children; for increasing the amounts by which retirement pensions under the National Insurance Act, 1946, may be increased by the payment of contributions after pensionable age, for reducing the extent to which deductions from widows' benefits and retirement pensions under the said Act are to be made in respect of earnings, for relaxing the conditions for an increase of sickness benefit or a retirement pension under the said Act in respect of a wife engaged in gainful occupation, and for modifying the provisions of the said Act under which persons are treated as having retired; and for purposes connected with the matters aforesaid.

[22nd June 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Alteration of
Exchequer
contributions
to National
Insurance
Fund.

1.—(1) As from the first day of October, nineteen hundred and fifty-one, for subsection (3) of section two of the National Insurance Act, 1946 (hereafter in this Act referred to as “the principal Act”), which provides for the payment of sums out of moneys provided by Parliament, there shall be substituted the following subsection—

“(3) Subject to the provisions of this Act, there shall be paid out of moneys provided by Parliament, in such manner and at such times as the Treasury may determine, for each contribution as an employed, self-employed or non-employed person paid by a person of any description set out in the first column of Part V of the said First Schedule, and for each employer's contribution paid in respect of a person of any such description, the sum (hereafter in this Act referred to as ‘the Exchequer supplement’) respectively set out in the said Part V in relation to a contribution of that class and a person of that description.

For the purpose of this subsection, the number of contributions of any class paid in any period shall be estimated in such manner as the Treasury may determine.”

(2) For Part V of the First Schedule to the principal Act (which sets out the amounts of the Exchequer supplement) there shall be substituted, as from the said first day of October, the following Part:—

PART V
EXCHEQUER SUPPLEMENT

Description of person by or in respect of whom contribution is paid	Amount of Supplement			
	For contribution as employed person	For employer's contribution	For contribution as self-employed person	For contribution as non-employed person
	s. d.	s. d.	s. d.	s. d.
Men over the age of 18...	8	8	8	8
Women over the age of 18	6	6	6	6
Boys under the age of 18	4	4	4	4
Girls under the age of 18	3	3	3	3

(3) The requirement under the said subsection (3) of section two as originally enacted to pay out of moneys provided by Parliament, in addition to the Exchequer supplements, the sum of forty-eight million pounds for the year ending with the thirty-first day of March, nineteen hundred and fifty-two, shall take effect as a requirement to pay the sum of twenty-four million pounds for the period of six months ending with the thirtieth day of September, nineteen hundred and fifty-one, and that requirement shall continue in force notwithstanding subsection (1) of this section.

2.—(1) Paragraph 6 of Part I of the Second Schedule to the principal Act (which specifies a weekly rate of thirty-three shillings and sixpence for a widowed mother's allowance) shall be amended, as from the appointed day, by substituting for the entry of thirty-three shillings and sixpence in the second column thereof an entry of forty shillings. Widows'
benefit.

(2) As from the appointed day, the weekly rate of a widowed mother's allowance shall, for any period during which she has a family which includes two or more children each of whom was at the husband's death a child of his family or is a son or daughter of theirs, be increased by the sum of two shillings and sixpence in respect of each of those children other than the elder or eldest.

In this subsection the expression "the husband", in relation to a woman who has been married more than once, refers only to her last husband.

(3) For subsection (3) of section seventeen of the principal Act (which requires the weekly rate of a widowed mother's allowance or a widow's pension to be reduced by the amount

of any earnings of the widow in excess of thirty shillings a week) there shall, as respects any week commencing on or after the appointed day for which the widow is entitled to a widowed mother's allowance or a widow's pension, be substituted the following subsection:—

“(3) Where the earnings of the widow have exceeded—

(a) sixty shillings for the week preceding any week for which she is entitled to a widowed mother's allowance, or

(b) forty shillings for the week preceding any week for which she is entitled to a widow's pension,

the weekly rate of the allowance or pension shall for the week for which she is so entitled be reduced by one shilling for each complete shilling of the excess:

Provided that the total amount of the reduction under this subsection of the weekly rate of a widowed mother's allowance for any week shall not exceed thirty shillings or, in a case where the allowance (apart from any increase in respect of any child or children other than the elder or eldest) is payable at a weekly rate of less than forty shillings, such smaller sum as may be prescribed.”

Increase of
benefit for
children.

3.—(1) Part I of the Second Schedule to the principal Act (which specifies in the third column thereof, in relation to certain benefits, the amount of seven shillings and sixpence as the amount by which the weekly rate of benefit is, in a case where the beneficiary's family includes a child or children, to be increased in respect of that child or the elder or eldest of those children) shall be amended, as from the appointed day, by substituting for the entries of seven shillings and sixpence in the third column thereof entries of ten shillings.

(2) Subsection (1) of section twenty-three of the principal Act (which provides for increasing the weekly rate of certain benefits by the amount specified as aforesaid in the third column of Part I of the Second Schedule to that Act) shall be amended, as from the appointed day, by adding at the end thereof the words “and, for any such period for which the family includes two or more of those children, be increased in respect of each of those children other than the elder or eldest by the amount set out in the fourth column of Part I of the said Schedule”.

(3) As from the appointed day, Part I of the said Schedule shall be amended by inserting between the third and fourth columns thereof an additional column which shall be headed “Increase for each additional child (where payable)”, and the amount of two shillings and sixpence shall be entered in that column so as to relate to all the rates of benefit to which the entries in the third column relate and also to the rate of a widowed mother's allowance.

The heading of the third column of the said Part I shall be amended by substituting for the word "child" the words "only child or elder or eldest child".

For any reference in any enactment (other than the said section twenty-three of the principal Act as amended by this section), or in any regulations or other instrument made under any enactment before the passing of this Act, to the fourth column of the said Part I there shall be substituted a reference to the fifth column thereof.

(4) Subsection (1) of section seventeen of the National Insurance (Industrial Injuries) Act, 1946 (which provides for increasing the weekly rate of the injury benefit or, in certain cases, disablement pension, where the beneficiary's family includes a child or children, by seven shillings and sixpence in respect of that child or the elder or eldest of those children) shall be amended, as from the appointed day, by substituting for the words "seven shillings and sixpence" the words "ten shillings", and by adding at the end of that subsection the words "and, for any such period during which the family includes two or more of those children, by two shillings and sixpence in respect of each of those children other than the elder or eldest".

(5) Subsection (1) of section twenty-one of the National Insurance (Industrial Injuries) Act, 1946 (which provides for the payment of death benefit by way of a weekly allowance of seven shillings and sixpence to any person whose family includes a child or children of the deceased's family, in respect of that child or the elder or eldest of those children) shall be amended, as from the appointed day, by substituting for the words "seven shillings and sixpence" the words "ten shillings" and by inserting after those words the words "and, for any such period during which the family includes two or more of those children, an allowance at the weekly rate of two shillings and sixpence in respect of each of those children other than the elder or eldest".

(6) The amendments set out in the Schedule to this Act, being amendments consequential on the payment of benefit under the principal Act and the National Insurance (Industrial Injuries) Act, 1946, in respect of children other than the elder or eldest, shall have effect as from the appointed day.

4.—(1) As from the appointed day, for the weekly rates of Retirement pensions specified for retirement pensions in paragraph 9 of Part I of the Second Schedule to the principal Act, there shall be substituted, in the case of any beneficiary who, being a woman, is over the age of sixty-five or, being a man, is over the age of seventy, weekly rates of twenty shillings and thirty shillings, respectively; and accordingly for

the said paragraph 9 there shall be substituted, as from the appointed day, the following paragraph:—

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
9. Retirement pension—				
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive—				
(i) if she is under the age of sixty-five ...	16 0	10 0	2 6	—
(ii) if she is over the age of sixty-five ...	20 0	10 0	2 6	—
(b) in any other case—				
(i) if the beneficiary, being a woman, is under the age of sixty-five or, being a man, is under the age of seventy ...	26 0	10 0	2 6	16 0
(ii) if the beneficiary, being a woman, is over the age of sixty-five or, being a man, is over the age of seventy ...	30 0	10 0	2 6	16 0

(2) As from the appointed day, in the case of any woman who is between the ages of sixty and sixty-five on that day or any man who is between the ages of sixty-five and seventy on that day, paragraph 9 of Part I of the Second Schedule to the principal Act, as amended by the preceding subsection, shall have effect as if for the entries of sixteen shillings and twenty-six shillings in the second column thereof there were substituted the entries of twenty shillings and thirty shillings respectively.

(3) Subsection (4) of section twenty of the principal Act (which provides for the increase of a retirement pension by one shilling for every twenty-five contributions as an employed or self-employed person paid by the beneficiary after attaining pensionable age) shall have effect, as respects any contribution paid for any contribution week commencing on or after the appointed day, as if for the reference to one shilling there were substituted a reference to one shilling and sixpence.

(4) Subsection (3) of section twenty-one of the principal Act (which applies subsections (4) and (5) of section twenty of that Act to a retirement pension payable to a woman by virtue of her husband's insurance) shall have effect, as respects any

contribution paid for any contribution week commencing on or after the appointed day, as if there were inserted at the end of paragraph (b) the words " and

- (c) the reference to one shilling and sixpence shall, as respects any period during which her husband is alive but not as respects any period after his death, be construed as a reference to one shilling".

(5) Regulations may provide for treating, for the purposes of subsection (4) of section twenty of the principal Act and that subsection as it applies to a retirement pension payable to a woman by virtue of her husband's insurance, subject to such modifications as may be prescribed, any contributions paid for contribution weeks commencing before the appointed day which do not on that day make up twenty-five or a multiple of twenty-five contributions, as if they had been paid for a week commencing on or after that day.

(6) Subsection (5) of the said section twenty (which requires the weekly rate of a retirement pension to be reduced by the amount of any earnings of the beneficiary in excess of twenty shillings) shall have effect, as respects any week commencing on or after the appointed day for which he is entitled to a retirement pension, as if for the reference to twenty shillings there were substituted a reference to forty shillings.

5. Paragraph 8 of Part I of the Second Schedule to the principal Act (which specifies a weekly rate of twelve shillings for a guardian's allowance) shall be amended as from the appointed day by substituting for the entry of twelve shillings in the second column thereof an entry of thirteen shillings and sixpence.

Increased
guardian's
allowance.

6. At the end of subsection (1) of section twenty-four of the principal Act (which provides for increasing the weekly rate of unemployment benefit, sickness benefit or a retirement pension for any period during which the beneficiary is residing with or is wholly or mainly maintaining his wife who is not engaged in any gainful occupation or occupations from which her weekly earnings exceed twenty shillings) there shall be added, as from the appointed day, the following proviso:

Relaxation of
conditions for
increase of
benefit in
respect of wife
engaged
in gainful
occupation.

" Provided that this subsection shall—

- (a) in relation to sickness benefit payable for any period during which the beneficiary is residing with his wife and is incapable of self-support, and
- (b) in relation to a retirement pension payable for any period during which the beneficiary is residing with his wife,

have effect as if for the reference to twenty shillings there were substituted a reference to forty shillings."

Re-entry
into regular
employment
after retire-
ment.

7.—(1) Regulations may make provision for enabling persons of such descriptions as may be prescribed, being persons who—

- (a) at the prescribed date, have retired for the purposes of the principal Act from regular employment but are, in the case of women, under the age of sixty-five or, in the case of men, under the age of seventy; and
- (b) elect, in such manner and in accordance with such conditions as may be prescribed and within a period of six months beginning with the prescribed date, to avail themselves of the regulations;

to be treated as from the date of their election as if they had not so retired.

(2) Any such regulations may make such modifications of the principal Act or this Act, in relation to persons who elect to be so treated, as appear to the Minister to be necessary or expedient, and may in particular, but without prejudice to the generality of this provision, provide—

- (a) for crediting contributions to any such persons for any period during which they were in retirement;
- (b) for determining how contributions paid by any such person, whether before or after his first retirement, are to be dealt with for the purposes of subsection (4) of section twenty of the principal Act;
- (c) for the payment to the wife of any such person of her retirement pension notwithstanding that her husband is not treated as having retired, and for excluding or modifying any increase of benefit under the principal Act in respect of the wife or other adult dependant of any such person or any children of his family or his wife's family.

(3) Nothing in the preceding provisions of this section shall be taken as affecting paragraph (c) of subsection (2) of section twenty of the principal Act (which provides that a person who has not previously retired from regular employment is to be deemed so to retire on the expiration of five years from his attaining pensionable age).

Appointed
day, and
supplementary
provisions.

8.—(1) In this Act the expression “the appointed day” means such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purpose in relation to different cases or classes of case.

(2) Without prejudice to the generality of any power to make regulations under the principal Act and to the construction of this Act as one with the principal Act—

- (a) the power conferred by subsection (2) of section sixty-five of the principal Act to prescribe modifications of,

and additions and exceptions to, the foregoing provisions of that Act, in relation to existing contributors and existing beneficiaries, shall include power to prescribe, in relation to them, modifications of, and additions and exceptions to, any provision of this Act, and such further modifications of, and additions and exceptions to, the foregoing provisions of the principal Act as may appear to the Minister to be necessary in consequence of any provision of this Act;

- (b) the reference in subsection (2) of section seventy-one of the principal Act (which confers power to modify the foregoing sections of that Act in relation to any entrants who are over school leaving age on the appointed day) to the foregoing sections of that Act shall include a reference to any provision of this Act;
- (c) the power conferred by subsection (4) of section sixty-nine of the principal Act to make provision by regulations for the modifying or winding up, in connection with the passing of that Act, of certain schemes shall include power to make such further provision therefor as appears to the authority by whom the power is exercisable to be necessary in consequence of any provision of this Act;
- (d) subsection (1) of section twenty-eight of the principal Act (which makes it a condition of any person's right to benefit that he makes a claim therefor in the prescribed manner) shall apply, except in such cases as may be prescribed, to any right to benefit or to additional benefit arising by virtue of any provision of this Act.

In this subsection references to any provision of this Act shall not include references to any such provision amending the National Insurance (Industrial Injuries) Act, 1946.

(3) Any power conferred by section two, section four or section seven of this Act to make regulations shall be without prejudice to the generality of any power to make regulations conferred by any provision of the principal Act.

(4) Nothing in section four of this Act shall be taken as affecting the provisions of section seventy-four of the principal Act relating to non-contributory pensions.

(5) Without prejudice to the generality of the power to make regulations under section twenty-five of the National Insurance (Industrial Injuries) Act, 1946, the reference in subsection (1) of that section to claims for benefit shall include a reference to any claims for benefit or for additional benefit arising by virtue of any provision of this Act, except in such cases as may be prescribed.

Regulations
and orders.

9.—(1) Section seventy-seven of the principal Act (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made or, in certain cases, before a draft thereof is laid before Parliament) shall not apply to any regulations made under this Act before the expiration of the period of six months beginning with the date of the passing of this Act, and shall not apply to any regulations made, or to any draft of regulations laid before Parliament, under the principal Act before the expiration of that period, if the instrument containing the regulations or, as the case may be, the draft of that instrument states that the regulations are made in consequence of this Act.

(2) Any power conferred by this Act to make regulations or orders shall be exercisable by statutory instrument, and any instrument containing any such regulation or order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Any power conferred by this Act to make an order shall include power to vary or revoke any order so made by a subsequent order.

Short title,
citation and
construction.

10.—(1) This Act may be cited as the National Insurance Act, 1951, and this Act and the National Insurance Acts, 1946 to 1949, may be cited together as the National Insurance Acts, 1946 to 1951.

(2) This Act, except so far as it amends the National Insurance (Industrial Injuries) Act, 1946, shall be construed as one with the National Insurance Act, 1946.

Section 3.

SCHEDULE

AMENDMENTS CONSEQUENTIAL ON THE PAYMENT OF BENEFIT IN RESPECT
OF CHILDREN OTHER THAN THE ELDER OR ELDEST

1. For paragraph (b) of subsection (3) of section twenty-three of the principal Act (which prevents the payment of an increase of a retirement pension in respect of a child to both a man and his wife) there shall be substituted the following paragraph:—

“(b) where a man and his wife are both entitled to a pension by virtue of his insurance—

(i) they shall not both be entitled for the same period to an increase under this section in respect of the same child;

(ii) if they would both (but for this provision) be entitled for the same period to an increase under this section at the weekly rate of ten shillings in respect of different children, one of them shall be entitled to an increase at that rate and the other (subject to sub-paragraph (i) hereof) to an increase at the weekly rate of two shillings and sixpence”.

2. In sub-paragraph (1) of paragraph 1 of the Fourth Schedule to the National Insurance (Industrial Injuries) Act, 1946 (which among other things prevents the payment of an allowance under section twenty-one of the said Act to more than one person) for the words from the beginning to "that allowance" there shall be substituted the words—

"Where two or more persons satisfy the conditions, in respect of the same death, for receipt of an allowance or allowances under section twenty-one of this Act for any period—

- (i) not more than one of those persons shall be entitled for that period to such an allowance in respect of the same child;
- (ii) if two or more of those persons would, but for this provision, be entitled for that period to such an allowance at the weekly rate of ten shillings in respect of different children, one person shall be entitled to an allowance at that rate and the other or each of the others (subject to head (i) hereof) to an allowance at the weekly rate of two shillings and sixpence".

3. In sub-paragraph (2) of the said paragraph 1 of the said Fourth Schedule, at the end of head (a), there shall be inserted the words "or, as the case may be, to the allowance at the weekly rate of ten shillings."

4. In subsection (2) of section thirty of the National Insurance (Industrial Injuries) Act, 1946 (which excludes from the family for the purposes of the Family Allowances Act, 1945, a child in respect of whom benefit is payable under section twenty-one of that Act) after the word "benefit", where it first occurs, there shall be inserted the words "at the weekly rate of ten shillings."

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Family Allowances Act, 1945	8 & 9 Geo. 6. c. 41.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.

CHAPTER 35

An Act to regulate the sale of pet animals.

[22nd June 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) No person shall keep a pet shop except under the Licensing authority of a licence granted in accordance with the provisions of pet shops of this Act.